

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SHYZAYA LOUALLEN,

Plaintiff,

v.

THE CITY OF NEW YORK and New York City
Police Department ("NYPD") Detective PABLO
TAVERAS (Shield No. 5855); Police Officer
("P.O.") JAMES KANE (Shield No. 15768);
P.O. John Does Nos. 1-4, in their individual
capacities,

Defendants.

INDEX NO.

SUMMONSPlaintiff designates New York County as the
County of Venue based on the location where
the claim arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney,
at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of
service.

If the summons was not personally delivered to you within the State of New York, the
answer must be served within 30 days after service of the summons is complete as provided
by law.

If you do not serve an answer to the attached complaint within the applicable time
limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in
the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for
the County of New York. This action is brought in New York County because it is the place
in which the claim arose.

Dated: July 25, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400By: 

David B. Rankin

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SHYZAYA LOUALLEN,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

v.

Index No.

THE CITY OF NEW YORK and New York City Police
Department ("NYPD") Detective PABLO TAVERAS
(Shield No. 5855); Police Officer ("P.O.") JAMES
KANE (Shield No. 15768); P.O. John Does Nos. 1-4, in
their individual capacities,

Defendants.

-----X

Plaintiff Shyzaya Louallen ("Mr. Louallen"), through his attorney David B. Rankin of
Beldock Levine & Hoffman, LLP, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of New York State and New York City.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis assaulted, seized, detained, arrested, and searched him. By reason of defendants' actions, including defendants' arrest of Plaintiff without probable cause and subjecting Plaintiff to unreasonable and unlawful searches and seizures, Plaintiff was deprived of his constitutional, statutory, and common law rights and suffered physical, emotional, and economic injury.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees and costs.

JURISDICTION AND VENUE

4. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under the laws of New York State and New York City.

5. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller, and the Comptroller designated the claim as number 2021PI019306.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York because the incident took place in New York County, and defendants regularly and substantially conduct business in New York County. C.P.L.R. § 503 (a).

8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

9. Plaintiff is and was at all times relevant to the action, a resident of New York County in the State of New York.

10. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and

the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department

11. New York City Police Department (“NYPD”) Detective PABLO TAVERAS (Shield No. 5855); Police Officer (“P.O.”) JAMES KANE (Shield No. 15768); Officers John Doe Nos. 1-4 (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees, and agents of the NYPD.

12. The true names and shield numbers of defendants NYPD Officers John Doe Nos. 1-4 are not currently known to the Plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

13. The Individual Defendants are being sued in their individual capacities.

14. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

¹ By identifying said defendants as “John Doe” or “Richard Roe,” plaintiff is making no representations as to the gender of said defendants.

15. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

16. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

JURY DEMAND

17. Plaintiff demands a trial by jury in this action on each one of his damage claims.

STATEMENT OF FACTS

18. On April 27, 2021, at about 6:35 p.m., at or around 143rd Street and 8th Avenue in the County of New York, members of the New York Police Department ("NYPD") assaulted and arrested Mr. Louallen without justification or probable cause.

19. Mr. Louallen was sitting in the driver's seat of a parked car when two plainclothes NYPD officers approached him.

20. Two more officers arrived and handcuffed Mr. Louallen without warrant, justification, or probable cause.

21. Upon information and belief, the individual defendants singled out Mr. Louallen because of his actual and/or perceived race and/or other protected status.

22. In arresting Mr. Louallen, NYPD officers used unwarranted and excessive force against him.

23. One of the individual defendants, a male NYPD member, grabbed Mr. Louallen by the neck and choked him. The same individual defendant also kicked and punched Mr. Louallen and placed his knee on Mr. Louallen's neck.

24. Officers transported Mr. Louallen to PSA 6, where Mr. Louallen was fingerprinted, photographed, and placed in a cell.

25. While in police custody, Mr. Louallen requested medical attention, but officers did not comply.

26. Mr. Louallen was falsely charged with two felony charges: P.L. 265.03(1)(b) and 265.03(3) (Criminal Possession of a Weapon in the Second Degree), and had to attend multiple court appearances including, upon information and belief, a grand jury hearing.

27. Defendants knew, or should have known, that they did not have credible evidence upon which to prosecute Mr. Louallen but initiated and maintained a prosecution against him without probable cause.

28. The charges against Mr. Louallen were dismissed on or about August 31, 2021.

29. As a result of the officers' unlawful conduct, Mr. Louallen experienced deprivation of liberty, physical injury, pain, suffering, humiliation, and extreme mental and emotional anguish.

30. The NYPD members whose actions caused injury to Mr. Louallen were acting under color of law as agents, employees and/or officers of Defendant THE CITY OF NEW YORK.

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

31. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

32. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law to deprive plaintiff of certain constitutionally protected rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from excessive force;
- d. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- e. the right to be free from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants;
- f. the right to be free from malicious prosecution; and
- g. the right to equal protection, privileges, and immunities under the laws;

33. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

34. As a direct and proximate result of the individual defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

35. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

36. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

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SECOND CLAIM FOR RELIEF
ASSAULT AND BATTERY

37. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

38. By the actions described above, Defendants did inflict assault and battery upon Plaintiff.

39. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

40. The individual defendant officers assaulted Plaintiff without cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

41. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT

42. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

43. By the actions described above, Defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

44. Defendants caused to be falsely detained and imprisoned or falsely detained and imprisoned Plaintiff without legal justification, without the consent of Plaintiff, and while Plaintiff was aware of such detention and imprisonment.

45. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

46. The individual defendant officers arrested, detained, and imprisoned Plaintiff without probable cause while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

47. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. The individual defendant officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

51. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
NEGLIGENCE

52. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

53. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are thus directly chargeable to Defendant City of New York under the state law doctrine of *respondeat superior*.

55. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
BIAS-BASED PROFILING

56. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

57. By initiating law enforcement action against Plaintiffs based on his actual and/or perceived race and/or other protected status, rather than Plaintiffs' behavior or other information linking them to suspected unlawful activity, Defendants and Defendants' agents engaged in bias-based profiling in violation of N.Y.C. Admin. Code § 14-151(c)(1)(i) and (ii).

58. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

59. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
VIOLATIONS OF N.Y.C. ADMINISTRATIVE CODE § 8-801, et. seq.

60. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

61. By the actions described above, Defendants violated Plaintiff's right to be secure in his person, papers and effects against unreasonable searches and seizures, and to be secure against the use of excessive force, in violation of N.Y.C. Administrative Code § 8-802, and Plaintiff seeks redress under N.Y.C. Admin Code § 8-801, *et seq.*

62. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

63. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, humiliation, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

64. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

65. Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of his rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of rights, privileges, and immunities:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment and from being wrongfully detained without cause or legal justification, and of which Plaintiff was aware and did not consent;
- iv. freedom from deprivation of liberty without due process of law; and
- v. right to equal protection of the law.

66. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the

scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

67. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION

68. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

69. Defendants, despite knowing that probable cause did not exist to arrest, initiate, and continue the prosecution against Plaintiff on two felony charges: P.L. 265.03(1)(b) and 265.03(3) (Criminal Possession of a Weapon in the Second Degree) intentionally, recklessly, and with malice caused Plaintiff to be arrested, charged, and held in custody for those crimes.

70. The criminal case against Plaintiff was terminated in his favor when all charges against him were dismissed on or about August 31, 2021.

71. As a direct and proximate result of Defendants' actions, Plaintiff was prosecuted on two felony charges, imprisoned, had to defend against the charges against him through multiple court appearances including, upon information and belief, a grand jury hearing, and suffered the other grievous and continuing damages and injuries set forth in this complaint.

72. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore

directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

TENTH CLAIM FOR RELIEF
ABUSE OF PROCESS

73. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

74. By the conduct and actions described above, Defendant THE CITY OF NEW YORK, by and through its employees, agents and/or officers, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and to seek a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process.

75. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of Defendant, through its employees, agents and/or officers, were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The individual defendant officers acted with extreme and outrageous conduct while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, invoking state power and/or authority, and, as a result, Defendant CITY OF NEW YORK is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

77. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

ELEVENTH CLAIM FOR RELIEF
DENIAL OR DELAY OF MEDICAL CARE AND/OR MEDICATION

78. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

79. Defendants denied and/or delayed providing Plaintiff reasonable, good faith medical attention while he was in custody of NYPD members.

80. As a result, Plaintiff suffered serious injury or significant exacerbation of injury.

81. Defendants' conduct violated New York Civil Rights Law Section 28.

TWELFTH CLAIM FOR RELIEF
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK

82. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

83. The conduct of the individual defendants alleged herein, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or his duties and functions as NYPD officers, and/or while he or she was acting as an agent and employee of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiff pursuant to the state common law doctrine of *respondeat superior*.

84. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

THIRTEENTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, RETENTION

85. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

86. Defendant THE CITY OF NEW YORK negligently hired, screened, and retained the NYPD officers who engaged in the conduct underlying Plaintiff's claims. The acts and conduct of Defendant in negligently hiring, screening, and retaining its police officers were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

87. The Individual Defendants, were, at all times relevant to this Count, employees and agents of either the City of New York. Each of those defendants and persons was acting within the scope of his or her employment, and their acts and omissions, as alleged above, are therefore directly chargeable to Defendant The City of New York under the state law doctrine of *respondeat superior*.

88. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff demands judgment against Defendants and prays for relief as follows:

- a. that he be compensated for violation of his constitutional rights, deprivation of liberty, physical injury, pain, suffering, mental and emotional anguish and humiliation; and
- b. that he be awarded punitive damages; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and

- d. for such other further and different relief as to the Court may deem just and proper.

Dated: July 25, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

By: 
David B. Rankin
Deema Azizi

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: July 25, 2022
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-277-5825
e: drankin@blhny.com
Attorneys for Plaintiff



By: _____
David B. Rankin